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File No.: EXP202213779

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 20/11/2022, a document was received by this Agency presented by A.A.A. (hereinafter, the complainant), through which a complaint is made against RACING BOUTIQUE, S.L. with NIF B87380093 (hereinafter, RACING BOUTIQUE, S.L.), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

"On October 27, 2022, I was about to enter the establishment (...), and to my surprise, I found a photograph of myself captured by the security cameras of the establishment along with those of three other people, printed on paper and hung next to the entrance door of the store. Previously, in the months of August and July to which the images correspond, I visited the store for the first and only time as any normal customer; that day, apparently, according to the person in charge of the establishment, an item was stolen from the store. I asked the person in charge for explanations regarding the evidence they have showing me leaving through the door with any item from the establishment, and why they display the images, which are personal, to which they responded that on the day the events occurred, I was inside the store and they consider me a suspect, publishing the photographs displayed at the entrance of the store for the public to see."

Along with the complaint, a photographic report of the physical store "RACING BOUTIQUE" and of the photographs subject to the complaint is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 30/12/2022, the complaint was forwarded to RACING BOUTIQUE, S.L., for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 10/01/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail which was returned as "Returned to sender due to incorrect address" on 25/01/2023. Additionally, an attempt was made to carry out the notification again by electronic means, making it available to RACING BOUTIQUE, S.L. on 30/01/2023 and being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 10/02/2023.

No response has been received to the forwarding letters.

THIRD: On 20/02/2023, in accordance with Article 65 of the LOPDGDD, the complaint presented by the complainant was admitted for processing.

FOURTH: On 31/05/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against RACING BOUTIQUE, S.L., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR. Furthermore, it was ordered, as a provisional measure, the removal of the photographs subject to the complaint.

This agreement was attempted to be notified in accordance with the rules established in the LPACAP by postal notification, resulting in "Returned to sender due to unknown" on 08/06/2023, according to the acknowledgment issued by Correos. Thus, the notification was made by announcement published in the Official State Gazette on 16/06/2023.

No allegations were made against the initiation agreement.

FIFTH: On 06/09/2023, the instructing body prepared a resolution proposal in which it was proposed to

sanction RACING BOUTIQUE, S.L. with a fine of €2,000 for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a). It also confirmed the provisional measure of removal of the photographs subject to the complaint imposed in the initiation agreement of this sanctioning procedure. The resolution proposal was notified on 06/10/2023 by appearance before the service of the Single Enabled Electronic Address (hereinafter, DEHÚ) of B.B.B., with NIF ***NIF.1, on behalf of RACING BOUTIQUE, S.L.

On 06/10/2023, B.B.B. submitted a written statement to this Agency, on behalf of RACING BOUTIQUE S.L., in which the following was stated:

"Dear Sirs, after receiving notification with file number EXP202213779, I inform you that my company has neither had nor has any activity in the Shopping Center referred to, nor is it the owner of the store mentioned in that document.

I understand that there has been an error on the part of the complainant, so I request that this File be canceled and considered fully concluded."

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From the actions taken in the present procedure and the documentation on file, the following has been established:

PROVEN FACTS

FIRST: In the claim dated 20/11/2022, it is stated that 4 photographs were displayed inside the store "RACING BOUTIQUE," located in the Shopping Center (...); in which, under the title "(...)", the faces of four men can be seen, among whom is the claimant. This fact is proven by the photographic report provided by the claimant.

SECOND: It is recorded that B.B.B., with NIF ***NIF.1, representing RACING BOUTIQUE, S.L., has stated that the aforementioned entity is neither the owner of the store "RACING BOUTIQUE," located in the mentioned Shopping Center, nor does it carry out any activity therein.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;"

In the present case, according to Article 4.1 of the GDPR, the physical image of a person is personal data. Thus, the display of photographs in which the faces of individuals are visible constitutes processing of personal data, as it identifies them and allows for their identification.

III

Lawfulness of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);
(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances under which the processing of personal data is considered lawful are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

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d) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

e) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, particularly when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this regard, Recital 40 of the GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract."

In this case, it is recorded that inside the store "RACING BOUTIQUE," located in the Shopping Center (...), 4 photographs were displayed under the title "(...)." In the photographic report provided by the complainant, it is observed that the images show the faces of 4 males, among whom the complainant would be included.

Based on that information, all actions of this Agency were directed to the company RACING BOUTIQUE, S.L., believing that it was the entity responsible for the physical store "RACING BOUTIQUE," located in the Shopping Center (...). However, on 06/10/2023, a letter from B.B.B. was received by this Agency, which, on behalf of RACING BOUTIQUE, S.L., indicated that the aforementioned entity was neither the owner of the store where the photographs were displayed nor had any activity in that Shopping Center.

Consequently, after examining the documentation in the administrative file, there is insufficient evidence to attribute responsibility to RACING BOUTIQUE, S.L.; to the extent that it has not been confirmed that it is indeed the owner of the store "RACING BOUTIQUE" located in the Shopping Center (...).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present sanctioning procedure against RACING BOUTIQUE, S.L., with NIF B87380093.

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SECOND: TO NOTIFY this resolution to RACING BOUTIQUE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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